FlexVertex Public Artifacts

Software License Agreement

License

1. FlexVertex LLC (the "Vendor") grants to the user (the "Licensee") a non-exclusive and non-transferable license (the "License") to use the Public Artifacts software.

2. “Software” includes both the compiled libraries (e.g., JAR files, including `com.flexvertex` packages under the designated artifact namespace) and any associated source code. This includes, but is not limited to, sample programs, tutorials, instructional materials, documentation, and metadata. All such components, whether in compiled or source form, are collectively covered under this License.

3. Title, copyright, intellectual property rights, and distribution rights of the Software remain exclusively with the Vendor. Intellectual property rights include the look and feel of the Software. This Agreement constitutes a license for use only and is not in any way a transfer of ownership rights to the Software.

4. The rights and obligations under this Agreement are granted solely to the Licensee. The Licensee may not transfer or assign any of the rights or obligations granted under this Agreement to any other person or legal entity. The Licensee may not make available the Software for use by one or more third parties. These artifacts may be used by authorized developers or customers but may not be republished, reverse-engineered, or otherwise redistributed.

5. The Software may not be modified, reverse-engineered, or de-compiled in any manner through current or future available technologies.

6. Failure to comply with any terms outlined in the **License** section constitutes a material breach of this Agreement.

License Fee

7. These artifacts are proprietary and provided only to explicitly authorized parties. No redistribution or external publication is permitted.

Limitation of Liability

8. The Software is provided by the Vendor and accepted by the Licensee "as is". Liability of the Vendor will be limited to the extent permitted by applicable law. The Vendor will not be liable for any general, special, incidental, or consequential damages including, but not limited to, loss of production, loss of profits, loss of revenue, loss of data, or any other

business or economic disadvantage suffered by the Licensee arising out of the use or failure to use the Software.

9. The Vendor makes no warranty expressed or implied regarding the fitness of the Software for a particular purpose or that the Software will be suitable or appropriate for the specific requirements of the Licensee.

10. The Vendor does not warrant that use of the Software will be uninterrupted or error-free. The Licensee accepts that software in general is prone to bugs and flaws within an acceptable level as determined in the industry.

Warrants and Representations

11. The Vendor warrants and represents that it is the copyright holder of the Software. The Vendor warrants that granting this License does not violate any agreement, copyright, or applicable statute.

Acceptance

12. All terms, conditions and obligations of this Agreement will be deemed to be accepted by the Licensee ("Acceptance") on download or use of the Public Artifacts.

User Support

13. Other than community forums and documentation, no user support or maintenance is provided as part of this Agreement.

Term

14. The term of this Agreement will begin on Acceptance and is perpetual.

Termination

15. This Agreement will be terminated, and the License forfeited where the Licensee has failed to comply with any of the terms of this Agreement or is in breach of this Agreement. On termination of this Agreement for any reason, the Licensee will promptly cease use and delete the Software.

Force Majeure

16. Force Majeure includes but is not limited to:
    - Earthquakes
    - Typhoons
    - Floods
    - Fires
    - War

- Any other unforeseen and uncontrollable event.
The Vendor will not be liable where such events prevent the fulfillment of its obligations, provided it has taken all reasonable actions to mitigate their impact.

Governing Law

17. The Parties to this Agreement submit to the jurisdiction of the courts of the State of Colorado for the enforcement of this Agreement or any arbitration award or decision arising from this Agreement. This Agreement will be enforced or construed according to the laws of the State of Colorado.

Miscellaneous

18. This Agreement can only be modified in writing signed by both the Vendor and the Licensee.

19. This Agreement does not create or imply any relationship in agency or partnership between the Vendor and the Licensee.

20. Headings are inserted for the convenience of the parties only and are not to be considered when interpreting this Agreement. Words in the singular mean and include the plural and vice versa. Words in the masculine gender include the feminine gender and vice versa. Words in the neuter gender include the masculine gender and the feminine gender and vice versa.

21. If any term, covenant, condition or provision of this Agreement is held by a court of competent jurisdiction to be invalid, void or unenforceable, it is the parties' intent that such provision be reduced in scope by the court only to the extent deemed necessary by that court to render the provision reasonable and enforceable and the remainder of the provisions of this Agreement will in no way be affected, impaired or invalidated as a result.

22. This Agreement contains the entire agreement between the parties. All understandings have been included in this Agreement. Representations which may have been made by any party to this Agreement may in some way be inconsistent with this final written Agreement. All such statements are declared to be of no value in this Agreement. Only the written terms of this Agreement will bind the parties.

23. This Agreement and the terms and conditions contained in this Agreement apply to and are binding upon the Vendor's successors and assigns.

Notices

24. All notices to the Vendor under this Agreement are to be provided at the following address: FlexVertex LLC: 1942 Broadway St - Suite 314C, Boulder, CO, 80302 USA